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<u>LINE 1</u>	20CV371719	Millan v. Bouton Construction, Inc. (Class Action / PAGA)	See <u>Line 1</u> for tentative ruling
<u>LINE 2</u>	20CV374597	Regional Medical Center of San Jose, et al. v. County of Santa Clara dba Valley Health Plan	See <u>Line 2</u> for tentative ruling
<u>LINE 3</u>	20CV374597	Regional Medical Center of San Jose, et al. v. County of Santa Clara dba Valley Health Plan	See <u>Line 2</u> for tentative ruling
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<u>LINE 5</u>	21CV383976	Goodman v. Boba Guys, Inc. (Class Action)	See <u>Line 5</u> for tentative ruling
<u>LINE 6</u>	23CV423933	Running v. United Security Specialists, Inc. (Class Action / PAGA)	See <u>Line 6</u> for tentative ruling
<u>LINE 7</u>	23CV427314	Good Samaritan Hospital, L.P., et al. v. Kaiser Foundation Health Plan, Inc.	See <u>Line 7</u> for tentative ruling on motions to seal at Lines 7 – 20
<u>LINE 21</u>	24CV428938	Essex Portfolio, L.P. vs F.D. Thomas, Inc. et al	See <u>Line 21</u> for tentative ruling
<u>LINE 22</u>	24CV448267	Raj Parihar vs MIPS Holding, Inc.	See <u>Line 22</u> for tentative ruling
<u>LINE 23</u>	24CV448267	Raj Parihar vs MIPS Holding, Inc.	See <u>Line 23</u> for tentative ruling
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Calendar Line 1

Case Name: *Millan v. Bouton Construction, Inc.*
Case No.: 20CV371719

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's unopposed motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for April 14, 2027, at 2:30 p.m. in Department 19.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement